

20 March 2026

Angus Barron

2 Broadcast Way
Artarmon, NSW, 2064

Dear Angus,

Desktop Acid Sulfate Soil Risk Assessment of Honeycomb Drive, Eastern Creek, New South Wales

Prensa Pty Ltd (Prensa) was engaged by NextDC to undertake a desktop Acid Sulfate Soil (ASS) Risk Assessment (ASSRA) of a portion of Honeycomb Drive, Eastern Creek (the Site). The location of the Site has been illustrated in **Figure A** below.



Figure A: Site location plan

1 Background

The Site currently comprises mostly undeveloped grassland, with a paved area in the northeast corner and has a total land area of approximately 35.3 hectares. The Site is currently zoned as General Industrial Zone under the Blacktown City Council (Council).

Based on information provided it was understood NextDC are in the initial stages of developing the Site into a data centre. As part of the development process, NextDC required a desktop ASSRA to be completed which they can submit as part of the State Significant Development Application (SSDA) for the Site. As such, Prensa was requested to undertake this desktop ASSRA assessment to assist NextDC with the SSDA for the Site.

2 Objective

The objective of the desktop ASSRA was to assess the likelihood of ASS being present at the Site, that may pose a risk to the proposed redevelopment as a data centre.

3 Scope of Works

To complete the desktop ASSRA, Prensa undertook the following:

- Reviewed information regarding the site zoning, use, topography, hydrology, geology, hydrogeology and acid sulfate soils.
- Reviewed the provided environmental report relating to the Site.
- Reviewed Council Section 10.7 search.
- Preparation of this desktop ASSRA letter report.

4 Information Review

4.1 Desktop Review and Environmental Setting

A description of the Site has been provided in **Table 1** below. The information below was obtained from Google Maps and online databases outlined in **Section 6**.

Table 1: General Site Description and Environmental Setting	
Site Address	Archbold Road, Eastern Creek, 2766
Total Area of Site	Approximately 35.3 Hectares
Lot and Plan Details	Lot 7 on Deposited Plan (DP) 1225803 and Lot 13 on DP1302361
Local Council	Blacktown City Council
Planning Zone	General Industrial (IN1)
Current Use	Undeveloped land
Proposed Use	Data centre
Surrounding Land Uses	North: Quarry East: Commercial/industrial South: Undeveloped land West: Commercial/industrial and undeveloped land
Topography	According to review the eSPADE geological report, local topography was approximately between 50 to 100 m AHD (NSW Government, 2026)

Table 1: General Site Description and Environmental Setting

Geology	Wianamatta Group - Sandstone, siltstone and shale- Middle Triassic aged (NSW DPIE, 2026)
Surface Water Receptors	No surface water bodies were noted to be present on-site. The closest off-site surface water receptor to the Site was considered to be an unnamed creek, approximately 120 m south of the Site.

A Planning Report for the Site sourced online (NSW Government, 2026) are provided in **Attachment B**.

4.2 Characteristic of ASS

ASS is usually characterised as a dark grey clay rich or sandy soil which contain iron sulfides which produce an extreme acidic environment when exposed to air. This soil type is usually identified in low lying coastal areas, wetlands and tidal zones and contain certain properties such as seashells. ASS when exposed to air or disturbed, release sulfuric acid which causes a distinct “rotten egg” smell. These specific characteristics make ASS easy to identify when conducting intrusive fieldworks.

4.3 National ASS Map and eSPADE

Prensa reviewed the National Acid Sulfate Soil Map in Australia (CSIRO, 2014) on the 6 March 2026. Upon review of the map the Site was located within an area that had an **extremely low** probability of occurrence with very low confidence. This is shown in **Figure B** below with the Site location identified by the ‘1’ pin drop.

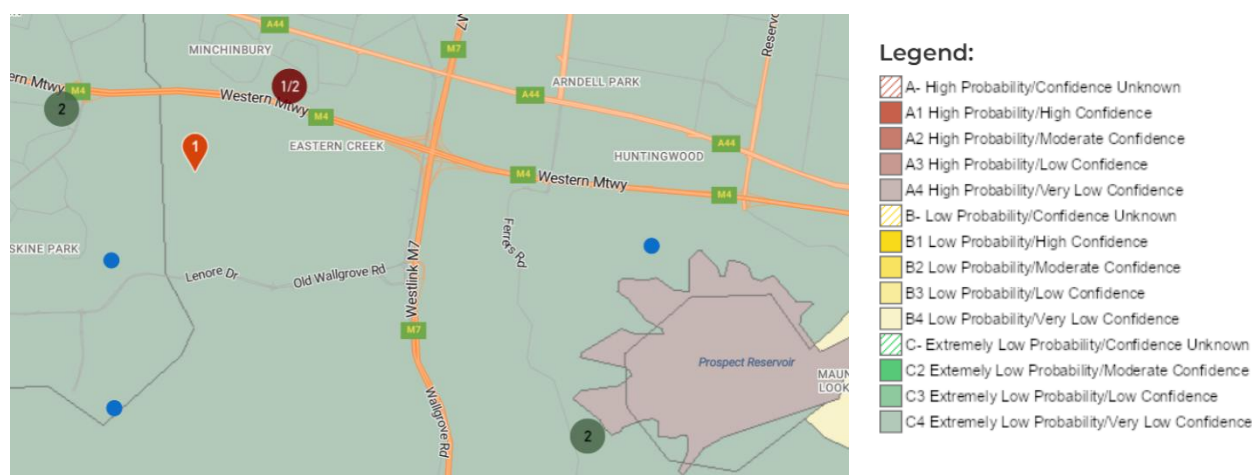


Figure B: Location of the Site on the National ASS Map

Prensa also reviewed the eSPADE NSW online map which contained no data relating to the Site.

4.4 Previous Site Assessment Report

Prensa was provided with the following previous environmental assessment report pertaining to the Site:

- *Targeted Phase II Detailed Site Investigation, Honeycomb Drive, Eastern Creek, NSW*, prepared by ADE Consulting Group, dated August 2014 (ADE DSI, 2014).

A summary of the key findings of the document review is provided below.

The ADE DSI, 2014 included a site inspection, soil sampling, sediment sampling and surface water sampling. The ADE DSI, 2014 reviewed the National Acid Sulphate Soils Atlas which “*showed that the site is within an area of no known occurrence of acid sulphate soils*”.

Soil: 21 soil boreholes were established in a gridded pattern across the eastern portion of the Site and comprised the surrounding area to the south (which is not in the site boundary). Boreholes were generally established to a depth of 0.5 m below ground level (bgl). Brown to dark brown silty clay was identified at most locations. No odorous soils or seashells, (which are indicators of ASS occurrence), were noted during the soil assessment completed by ADE, 2014.

Soil samples collected from 0.0-0.2 mbgl were analysed for metals, total recoverable hydrocarbons, (TRH), polycyclic aromatic hydrocarbons (PAH), organochlorine pesticides (OCPs), organophosphate pesticides (OPPs), polychlorinated biphenyls (PCBs), Phenols and Asbestos. The analytical results reported concentrations of contaminants of concern all less than the adopted health and ecological criteria.

Sediment: 5 sediment samples were collected from the creek which intercepted the southern portion of the investigation area. The analytical results reported one sediment sample with slightly elevated concentrations of arsenic and nickel, which exceeded adopted ecological criteria. ADE, 2014 considered the slightly elevated concentrations were likely attributed to the state of the creek at the time of the sampling, which was mostly dry as such could have increased the concentration of metals in the sediment due to precipitation of metals in water.

Surface Water: 5 surface water samples were collected from the creek. The surface water appeared to be turbid and odourless. The analytical results of the water samples reported concentrations less than adopted criteria.

4.5 Section 10.7 Planning Certificate

A Section 10.7 search was undertaken on Lot 13 DP1302361 portion of the Site with Council dated 5 March 2026.

The Section 10.7 search was undertaken to provide information on ASS occurrence at the Site and determine whether Council requires any specific documentation relating to ASS.

Review of the Section 10.7 search indicated the following relating to ASS, “*Council does not have an adopted policy that restricts the development of the land because of the likelihood of acid sulfate soils*”.

A copy of the Section 10.7 search statement is provided in **Attachment C**.

4.6 ASS Manual (1998) Guidance Document, NSW

The Acid Sulfate Soil Manual (1998) is the initial document for assessing and managing ASS in New South Wales and outlines best practice in assessing and managing the impacts of proposed works in areas likely to contain ASS. The ASS manual is utilised to assist in preliminary stages of development on whether an ASS assessment is required.

Upon review of the ASS manual, the following information is noted relating to our Site:

- The geological age of the Site and surrounding area is Middle Triassic with ASS more likely seen in Holocene aged geology;
- Soil horizon for the Site is likely between 50 – 100 m AHD with ASS more likely in horizons less than 5 m AHD;
- The Site is not located within marine or estuarine sediments or tidal lakes;
- The natural dominant vegetation across the Site/adjacent the Site is bushland with ASS more likely in areas dominant in mangroves or reeds;
- The surface water present south of the Site was observed by ADE, 2014 to be turbid and odourless whereas ASS water characteristics are usually clear or milky blue green, with a sulfurous smell and extensive iron stains on surface sediment, which were not observed.

Based on the above and per the ASS Manual, 1998, no further assessment, including intrusive sampling of soils is required for the Site as the likelihood of ASS present at the Site is low.

5 Conclusion

Based on the findings of this desktop ASSRA, Prensa considers it is unlikely ASS is present at the Site that may pose a risk to the proposed redevelopment as a data centre. As such, further assessment of ASS is not considered required.

This letter has been prepared subject to the attached Statement of Limitations. Should you have any questions regarding this letter, please do not hesitate to contact Marcus Neve or myself on (03) 9508 0100.

Yours sincerely,



Andrea Casonato
Principal Consultant
Prensa Pty Ltd

Attachments

- A – Statement of Limitations**
- B – Planning Report**
- C - Section 10.7**

6 References

- CSIRO. (2014, June 30). *Commonwealth Scientific Industrial Research Organisation (CSIRO) Australian Soil Resource Information System Map*. Retrieved January 5, 2026, from Australian Soil Resource Information System: www.asris.csiro.au/
- NSW DPIE. (2026). *NSW Department of Planning, Industry and Environment eSPADE Spatial Viewer*. Retrieved January 5, 2026, from <https://www.environment.nsw.gov.au/eSpade2Webapp/>
- NSW Government. (2026). *NSW Planning Portal Spatial Viewer*. Retrieved January 5, 2026, from <https://www.planningportal.nsw.gov.au/spatialviewer/#/find-a-property/address>
- NSW Government. (2026). *NSW Topographic Maps*. Retrieved January 5, 2026, from <https://portal.spatial.nsw.gov.au/portal/apps/webappviewer/index.html?id=06e3c2e0de1e4efda863854048c613c6>
- NSW Government, *Contaminated Land Management Act 1997*
- NSW Government, *Contaminated Land Management Amendment Act 2008*
- NSW Government, *Environmental Planning and Assessment Act 1979*
- NSW Government, *State Environmental Planning Policy (Resilience and Hazards)*, 2021
- Acid Sulfate Soil Manual*, New South Wales, Acid Sulfate Management Advisory Committee, August 1998.
- Acid Sulfate Soil Assessment Guidelines*, New South Wales, Acid Sulfate Management Advisory Committee, August 1998.
- NSW EPA, *Waste Classification Guidelines, Part 4: Acid Sulfate Soils*, November 2014.
- National Environmental Protection Council, *National Environment Protection (Assessment of Site Contamination) Measure 1999*, 2013 (NEPM (ASC))
- NSW Environment Protection Authority (EPA), *Contaminated Land Guidelines: Consultants Reporting on Contaminated Land*, 2020
- Australian Standard 4482.1, *Guide to the Investigation and Sampling of Sites with Potentially Contaminated Soil*, Part 1: Non-volatile and semi-volatile compounds, 2005; and
- Australian Standard 4482.2, *Guide to the Sampling and Investigation of Potentially Contaminated Soil*, Part 2: Volatile Substances, 1999 (AS 4482.2)

Attachment A: Statement of Limitations

Statement of Limitations

This document has been prepared in response to specific instructions from **Error! Reference source not found.** to whom the report has been addressed. The work has been undertaken with the usual care and thoroughness of the consulting profession. The work is based on generally accepted standards, practices of the time the work was undertaken. No other warranty, expressed or implied, is made as to the professional advice included in this report.

The report has been prepared for the use by NextDC and the use of this report by other parties may lead to misinterpretation of the issues contained in this report. To avoid misuse of this report, Prensa advise that the report should only be relied upon by NextDC and those parties expressly referred to in the introduction of the report. The report should not be separated or reproduced in part and Prensa should be retained to assist other professionals who may be affected by the issues addressed in this report to ensure the report is not misused in any way.

Prensa is not a professional quantity surveyor (QS) organisation. Any areas, volumes, tonnages or any other quantities noted in this report are indicative estimates only. The services of a professional QS organisation should be engaged if quantities are to be relied upon.

Sampling Risks

Prensa acknowledges that any scientifically designed sampling program cannot guarantee all sub-surface contamination will be detected. Sampling programs are designed based on known or suspected site conditions and the extent and nature of the sampling and analytical programs will be designed to achieve a level of confidence in the detection of known or suspected subsurface contamination. The sampling and analytical programs adopted will be those that maximises the probability of identifying contaminants. NextDC must therefore accept a level of risk associated with the possible failure to detect certain sub-surface contamination where the sampling and analytical program misses such contamination. Prensa will detail the nature and extent of the sampling and analytical program used in the investigation in the investigation report provided.

Environmental site assessments identify actual subsurface conditions only at those points where samples are taken and when they are taken. Soil contamination can be expected to be non-homogeneous across the stratified soils where present on site, and the concentrations of contaminants may vary significantly within areas where contamination has occurred. In addition, the migration of contaminants through groundwater and soils may follow preferential pathways, such as areas of higher permeability, which may not be intersected by sampling events. Subsurface conditions including contaminant concentrations can also change over time. For this reason, the results should be regarded as representative only.

NextDC recognises that sampling of subsurface conditions may result in some cross contamination. All care will be taken and the industry standards used to minimise the risk of such cross contamination occurring, however, NextDC recognises this risk and waives any claims against Prensa and agrees to defend, indemnify and hold Prensa harmless from any claims or liability for injury or loss which may arise as a result of alleged cross contamination caused by sampling.

Reliance on Information Provided by Others

Prensa notes that where information has been provided by other parties in order for the works to be undertaken, Prensa cannot guarantee the accuracy or completeness of this information. NextDC therefore waives any claim against the company and agrees to indemnify Prensa for any loss, claim or liability arising from inaccuracies or omissions in information provided to Prensa by third parties. No indications were found during our investigations that information contained in this report, as provided to Prensa, is false.

Recommendations for Further Study

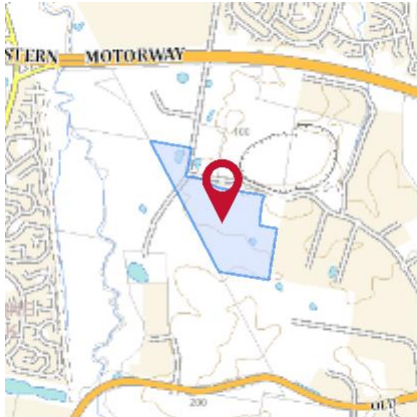
The industry recognised methods used in undertaking the works may dictate a staged approach to specific investigations. The findings therefore of this report may represent preliminary findings in accordance with these industry recognised methodologies. In accordance with these methodologies, recommendations contained in this report may include a need for further investigation or analytical analysis. The decision to accept these recommendations and incur additional costs in doing so will be at the sole discretion of NextDC and Prensa recognises NextDC will consider their specific needs and the business risks involved. Prensa does not accept any liability for losses incurred as a result of NextDC not accepting the recommendations made within this report.

Attachment B – Property Report



Property Report

ARCHBOLD ROAD EASTERN CREEK 2766



Property Details

Address: ARCHBOLD ROAD EASTERN CREEK 2766
 Lot/Section 13/-/DP1302361
 /Plan No:
 Council: BLACKTOWN CITY COUNCIL

Summary of planning controls

Planning controls held within the Planning Database are summarised below. The property may be affected by additional planning controls not outlined in this report. Please contact your council for more information.

Land Zoning	IN1 - General Industrial: (pub. 6-12-2024)
Height Of Building	NA
Floor Space Ratio	NA
Minimum Lot Size	NA
Heritage	NA
Land Reservation Acquisition	NA
Foreshore Building Line	NA
Local Provisions	13 km 30 km
Obstacle Limitation Surface	230.5-230.5

Detailed planning information

State Environmental Planning Policies which apply to this property

State Environmental Planning Policies can specify planning controls for certain areas and/or types of development. They can also identify the development assessment system that applies and the type of environmental assessment that is required.

This report provides general information only and does not replace a Section 10.7 Certificate (formerly Section 149)



Property Report

ARCHBOLD ROAD EASTERN CREEK 2766

- State Environmental Planning Policy (Biodiversity and Conservation) 2021: Excluded (pub. 21-10-2022)
- State Environmental Planning Policy (Biodiversity and Conservation) 2021: Hawkesbury Nepean Catchment (pub. 21-10-2022)
- State Environmental Planning Policy (Biodiversity and Conservation) 2021: Hawkesbury-Nepean Sub-Catchments (pub. 21-10-2022)
- State Environmental Planning Policy (Biodiversity and Conservation) 2021: Land Application (pub. 2-12-2021)
- State Environmental Planning Policy (Exempt and Complying Development Codes) 2008: Land Application (pub. 12-12-2008)
- State Environmental Planning Policy (Housing) 2021: Land Application (pub. 26-11-2021)
- State Environmental Planning Policy (Industry and Employment) 2021: Land Application (pub. 2-12-2021)
- State Environmental Planning Policy (Industry and Employment) 2021: Subject Land (pub. 2-12-2021)
- State Environmental Planning Policy (Planning Systems) 2021: Land Application (pub. 2-12-2021)
- State Environmental Planning Policy (Primary Production) 2021: Land Application (pub. 2-12-2021)
- State Environmental Planning Policy (Resilience and Hazards) 2021: Land Application (pub. 2-12-2021)
- State Environmental Planning Policy (Resources and Energy) 2021: Land Application (pub. 2-12-2021)
- State Environmental Planning Policy (Sustainable Buildings) 2022: Land Application (pub. 29-8-2022)
- State Environmental Planning Policy (Transport and Infrastructure) 2021: Land Application (pub. 2-12-2021)

This report provides general information only and does not replace a Section 10.7 Certificate (formerly Section 149)



Other matters affecting the property

Information held in the Planning Database about other matters affecting the property appears below. The property may also be affected by additional planning controls not outlined in this report. Please speak to your council for more information

Biodiversity Value (BV) Map	Clearing native vegetation for a development on an area on the BV Map may require a Biodiversity Development Assessment Report. Consult your local council.
Bushfire Prone Land	Vegetation Buffer
	Vegetation Category
Greater Sydney Tree Canopy Cover 2019 Percentage	0.90
	1.58
Greater Sydney Tree Canopy Cover 2022 Percentage	2.75
	3.00
Housing and Productivity Contribution	Greater Sydney - Base HPC
Local Aboriginal Land Council	DEERUBBIN
Regional Plan Boundary	Greater Sydney

Attachment C - Section 10.7

Planning certificate



Section 10.7 (2)

We have prepared this Planning Certificate under Section 10.7 of the *Environmental Planning and Assessment Act 1979*. The form and content of the Certificate is consistent with Schedule 2 of the Environmental Planning and Assessment Regulation 2021.

Applicant details

H STEVENTON

Your reference 13/DP1302361

5 BURWOOD ROAD, HAWTHORN

MELBOURNE VIC 3122

Certificate details

Certificate no. PL2026/02810

Fee \$71.00

Date issued 05 March 2026

Urgency fee N/A

Receipt no D006391799

Property information

Property ID 415656

Land ID 408718

Legal description LOT 13 DP 1302361

Address HONEYCOMB DRIVE EASTERN CREEK NSW 2766

County CUMBERLAND

Parish MELVILLE

Within this certificate, we have included references to websites where you may find additional information. If you still require assistance on any matter covered by this certificate, please contact us on 02 5300 6000 or at s10.7certificates@blacktown.nsw.gov.au

Disclaimer

Blacktown City Council gives notice and points out to all users of the information supplied herein, that the information herein has been compiled by Council from sources outside of Council's control. While the information herein is provided with all due care and in good faith, it is provided on the basis that Council will not accept any responsibility for and will not be liable for its contents or for any consequence arising from its use, and every user of such information is advised to make all necessary enquiries from the appropriate organisations, institutions and the like.

Blacktown City Council also gives notice to all users of the information supplied herein, wherever any particular enquiry herein remains unanswered or has not been elaborated upon, such silence should not be interpreted as meaning or inferring either a negative or a positive response as the case may be.

Section 10.7 (2)

The following information is provided under Section 10.7(2) of the *Environmental Planning and Assessment Act 1979*. The information relates to the subject land at the date of this Certificate.

1. Relevant planning instruments and development control plans

1.1 Environmental planning instruments

The following environmental planning instruments apply to the carrying out of development on the land:

The subject land is zoned under State Environmental Planning Policy (Industry and Employment) 2021.

The following environmental planning instruments may apply to the carrying out of development on the land:

- State Environmental Planning Policy (Biodiversity and Conservation) 2021
- State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
- State Environmental Planning Policy (Housing) 2021
- State Environmental Planning Policy (Industry and Employment) 2021
- State Environmental Planning Policy (Planning Systems) 2021
- State Environmental Planning Policy (Precincts - Central River City) 2021
- State Environmental Planning Policy (Precincts – Western Parkland City) 2021
- State Environmental Planning Policy (Primary Production) 2021
- State Environmental Planning Policy (Resilience and Hazards) 2021
- State Environmental Planning Policy (Resources and Energy) 2021
- State Environmental Planning Policy (Sustainable Buildings) 2022
- State Environmental Planning Policy (Transport and Infrastructure) 2021

1.2 Development control plans

The following development control plans apply to the carrying out of development on the land:

The Employment Lands Precinct Plan - Eastern Creek Precinct - Stage 3 applies to the subject land.

The Plan outlines the provisions relating to development of the Stage 3 Release Area within the Eastern Creek Precinct of State Environmental Planning Policy (Industry and Employment) 2021 (formerly zoned under SEPP Western Sydney Employment Area 2009 and before that SEPP No 59).

1.3 Proposed environmental planning instruments

The following proposed environmental planning instruments apply to the carrying out of development on the land. They are or have been the subject of community consultation or on public exhibition under the *Environmental Planning and Assessment Act 1979*:

The following draft State Environmental Planning Policies (SEPPs) or Explanation of Intended Effects (EIE) are currently on exhibition or have been exhibited. For more information refer to <https://www.planningportal.nsw.gov.au/have-your-say->.

- EIE on “changes to deter illegal tree and vegetation clearing” – Codes SEPP and Biodiversity SEPP <https://www.planningportal.nsw.gov.au/draftplans/under-consideration/protecting-our-trees-changes-deter-illegal-tree-and-vegetation-clearing>
- EIE on “improving planning processes to deliver infrastructure faster” – Transport and Infrastructure SEPP and Planning Systems SEPP <https://www.planningportal.nsw.gov.au/draftplans/under-consideration/explanation-intended-effect-improving-planning-processes-deliver-infrastructure-faster>
- EIE on “proposed provisions for the interim use of corridors” – Transport and Infrastructure SEPP and Codes SEPP <https://www.planningportal.nsw.gov.au/draftplans/under-consideration/transport-and-infrastructure-sepp-amendment-chapter-4-major-infrastructure-corridors>

1.4 Proposed development control plans

There are no proposed development control plans which apply to the carrying out of development on the land.

2. Zoning and land use under relevant environmental planning instruments

The following information will assist in determining how the subject land may be developed. It is recommended that you read this section in conjunction with a full copy of any relevant environmental planning instrument as there may be additional provisions that affect how the land may be developed.

2.1 Zoning

The following is the name(s) of the zone(s) under the environmental planning instrument(s) that applies to the land, including the purposes for which development in the zone(s):

- (a) may be carried out without development consent, and
- (b) may not be carried out except with development consent, and
- (c) is prohibited:

Zone IN1 General Industrial

1 Objectives of zone

- To facilitate a wide range of employment-generating development including industrial, manufacturing, warehousing, storage and research uses and ancillary office space.
- To encourage employment opportunities along motorway corridors, including the M7 and M4.
- To minimise any adverse effect of industry on other land uses.
- To facilitate road network links to the M7 and M4 Motorways.
- To encourage a high standard of development that does not prejudice the sustainability of other enterprises or the environment.
- To provide for small-scale local services such as commercial, retail and community facilities (including child care facilities) that service or support the needs of employment-generating uses in the zone.

2 Permitted without consent

Nil.

3 Permitted with consent

Building identification signs; Business identification signs; Depots; Environmental facilities; Environmental protection works; Food and drink premises; Freight transport facilities; Garden centres; Hardware and building supplies; Industrial retail outlets; Industrial training facilities; Industries (other than offensive or hazardous industries); Neighbourhood shops; Places of public worship; Recreation areas; Recreation facilities (indoor); Roads; Service stations; Storage premises; Transport depots; Truck depots; Vehicle body repair workshops; Vehicle repair stations; Warehouse or distribution centres.

4 Prohibited

Any development not specified in item 2 or 3.

2.2 Zoning under draft Environmental Planning Instruments

The following is the name(s) of the zone(s) under the draft environmental planning instrument(s) that applies to the land, including the purposes for which development in the zone(s):

- (a) may be carried out without development consent, and
- (b) may not be carried out except with development consent, and
- (c) is prohibited:

There is no zoning proposed under a draft environmental planning instruments that applies to the land

2.3 Additional permitted uses

The following outlines whether any additional permitted uses apply to the land:

Additional permitted uses may apply to the subject land in line with the following table. Note that section 1.1 of this Planning Certificate outlines if any of the below environmental planning instruments apply.

For more information, please refer to the relevant environmental planning instruments on the NSW Legislation website <https://legislation.nsw.gov.au/>.

Environmental planning instrument	Provisions - Additional permitted uses
Blacktown Local Environmental Plan 2015	Applies to certain land as outlined in clause 2.5.
State Environmental Planning Policy (Precincts—Central River City) 2021	Applies to certain land in the Huntingwood West Precinct, Greystanes Southern Employment Lands site, Riverstone West Precinct Plan, Alex Avenue and Riverstone Precinct Plan, Area 20 Precinct Plan, Schofields Precinct Plan, Blacktown Growth Centres Precinct Plan, Rouse Hill Regional Park and Marsden Park Industrial Precinct Plan
State Environmental Planning Policy (Industry and Employment) 2021	Applies to certain land in the western Sydney employment area.

2.4 Minimum land dimensions for the erection of a dwelling house

The following outlines whether development standards apply to the land that fix minimum land dimensions for the erection of a dwelling house on the land and, if so, the fixed minimum land dimensions:

There are no minimum land dimensions for the erection of a dwelling house that apply to land under Blacktown Local Environmental Plan 2015, other than where specified under clause 4.2A Dwellings in Zone RU4. Refer to Blacktown Local Environmental Plan 2015 for relevant development standards for minimum subdivision lot size, and Blacktown Development Control Plan 2015 for relevant development controls that apply.

The minimum land dimensions for the erection of a dwelling house located in the Sydney region growth centres and affected by State Environmental Planning Policy (Precincts – Central River City) 2021 and State Environmental Planning Policy (Precincts – Western Parkland City) 2021 is found in Part 4, Principal development standards of the relevant appendix.

For land affected by Chapter 6 St Marys of State Environmental Planning Policy (Precincts – Western Parkland City) 2021, the minimum land dimensions for a dwelling house are controlled by the St Marys Eastern Precinct and Ropes Creek Precinct Plans.

For more information, please access the relevant environmental planning instrument listed above at the NSW Legislation website: <https://legislation.nsw.gov.au/>

2.5 Biodiversity

The following outlines where the land is in an area of outstanding biodiversity value under the *Biodiversity Conservation Act 2016*:

Refer to the Department of Planning and Environment's online tool, which outlines if the land is in an area of outstanding biodiversity value under the *Biodiversity Conservation Act 2016*. The tool is located at:

<https://www.lmbc.nsw.gov.au/Maps/index.html?viewer=BOSETMap>

2.6 Conservation area

- a) Priority Conservation Land in the Blacktown local government area is generally located in the following locations:
- Bushland surrounding Prospect Reservoir, Prospect
 - Plumpton Park, Plumpton
 - Nurragingy Reserve, in Doonside/Rooty Hill/Glendenning
 - Doctor Charles McKay Reserve, Mount Druitt
 - Land adjoining Ropes Creek in Mount Druitt, Minchinbury and Eastern Creek
 - Shanes Park woodland
 - Wianamatta Regional Park, Ropes Crossing
 - Bushland in Angus bounded generally by Walker Parade, Park Road, Charlotte Street, Robert Street, Ben Street and Penprase Street
 - Bushland in Colebee to the north of the Westlink M7 and south of Sugarloaf Crescent, Colebee.
- b) The following outlines if the Cumberland Plain Conservation Plan (CPCP) and any relevant provisions under this plan apply to the site:

The CPCP does not apply.

Under the plan, there is land that is specified as 'certified urban capable land' where certain controls apply. There is also land specified as 'certified major transport corridor'.

The areas where the plan applies are:

- for 'certified urban capable land', certain land in the suburbs of Mount Druitt and Rooty Hill.
- for 'certified major transport corridors', the future Westlink M7 extension corridor generally to the north of Hassall Grove, Bidwill, Shalvey and Willmot, and through the Wianamatta Regional Park to the west of Ropes Crossing.

More information on land is affected by the Cumberland Plain Conservation Plan can be found on the Department of Planning and Environment website:

<https://www.planning.nsw.gov.au/Policy-and-Legislation/Strategic-conservation-planning/Cumberland-Plain-Conservation-Plan/Planning-controls>

The Cumberland Plain Conservation Plan spatial viewer that visually shows the affected areas is also available online at:

https://webmap.environment.nsw.gov.au/Html5Viewer4142/index.html?viewer=CPCP_View

2.7 Heritage

The following outlines where an item of environmental heritage, or proposed environmental heritage item, is located on the land:

The subject land is not affected by an item of environmental heritage or a proposed environmental heritage item.

3. Contributions plans

3.1 Contribution plans

The following outlines the name of each contributions plan under *the Environmental Planning and Assessment Act 1979*, Division 1 applying to the land:

Contributions Plan No. 18 - Eastern Creek Stage 3 applies to the subject land.

3.2 Draft contributions plans

The following outlines the name of each draft contributions plan under *the Environmental Planning and Assessment Act 1979*, Division 7.1 applying to the land:

Refer to Contributions plans section above to determine if any draft contributions apply.

3.3 Special contributions

The following outlines if the land is in a special contributions area under the *Environmental Planning and Assessment Act 1979*, Division 7.1 applying to the land:

The land may be in a Special Contribution Area as described below.

Land in the Growth Centres that are zoned under State Environmental Planning Policy (Precincts – Central River City) 2021 and State Environmental Planning Policy (Precincts – Western Parkland City) 2021, as specified in section 1.1 of this Planning Certificate, is in a Special Contribution Area, and will incur a Special Infrastructure Contribution.

You can find the map and other relevant information on the Special Contribution Area on the Department of Planning and Environment's website:

<https://www.planning.nsw.gov.au/Plans-for-your-area/Infrastructure-funding/Special-Infrastructure-Contributions/Western-Sydney-Growth-Area-SIC>

An interactive map is on the ePlanning Spatial Viewer under Layers > Development Control > Special Infrastructure Contributions at:

<https://www.planningportal.nsw.gov.au/spatialviewer/#!/find-a-property/address>

4. Complying development

4.1 Where complying development codes apply

The following outlines if the land is land on which complying development may be carried out under each of the development codes under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008:

Council does not have enough information to determine if complying development can apply. For more information, please review the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, available at: www.legislation.nsw.gov.au

4.2 Variations to complying development codes

The following outlines if the complying development codes are varied under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, Clause 1.12, in relation to the land:

The complying development codes are not varied for the subject land under Schedule 3 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

5. Exempt development

5.1 Where exempt development codes apply

The following outlines if the land is on land on which exempt development may be carried out under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008:

Council does not have enough information to determine if exempt development can apply. For more information, please review the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 available at: www.legislation.nsw.gov.au

5.2 Variations to exempt development codes

The following outlines if the exempt development codes are varied, under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, Clause 1.12, in relation to the land:

The exempt development codes are not varied for the subject land under Schedule 2 of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

6. Affected building notices and building product rectification orders

6.1 Affected building notice in force

The following outlines if Council is aware of any affected building notice in force for the subject land:

As at the date of this Planning Certificate, Council is not aware of any affected building notice in force for the subject land.

6.2 Affected building rectification order in force

The following outlines if Council is aware of any affected building product rectification order in force for the subject land:

As at the date of this Planning Certificate, Council is not aware of any affected building product rectification order in force for the subject land.

6.3 Affected building rectification order – notice of intent

The following outlines if Council is aware of any outstanding notice of intention to make a building product rectification order for the subject land:

As at the date of this Planning Certificate, Council is not aware of any outstanding notice of intention to make a building product rectification order for the subject land.

7. Land reserved for acquisition

7.1 Current provisions

The following outlines whether an environmental planning instrument as described in section 1 makes provision for the acquisition of land by an authority of the state, as referred to in section 3.15 of the *Environmental Planning and Assessment Act 1979*:

The land may be reserved for acquisition by an authority of the state. It is reserved where it is located on the Land Reservation Acquisition map. This is an interactive map and can be found on the ePlanning Spatial Viewer under Layers > Principal Planning Layers > Land Reservation Acquisition Map at: <https://www.planningportal.nsw.gov.au/spatialviewer/#/find-a-property/address>. (Turn off the 'zoning' layer under Layers > Principal Planning Layers > Land Zoning Map for ease of viewing).

There are also Land reservation acquisition maps under each of the following environmental planning instruments, which can be accessed on the NSW Legislation website at: <https://legislation.nsw.gov.au/>

- Blacktown Local Environmental Plan 2015
- State Environmental Planning Policy (Precincts—Central River City) 2021
- State Environmental Planning Policy (Precincts—Western Parkland City) 2021
- State Environmental Planning Policy (Industry and Employment) 2021 (but only where the site is in the Western Sydney employment area, as specified in Chapter 2).

Note that section 1.1 of this Planning Certificate outlines if any of the above environmental planning instruments apply.

7.2 Draft provisions

The following outlines whether a draft environmental planning instrument as described in section 1 makes provision for the acquisition of land by an authority of the state, as referred to in section 3.15 of the *Environmental Planning and Assessment Act 1979*:

A draft environmental planning instrument referred to in section 1 of this certificate may make provision in relation to the acquisition of the land by a public authority, as referred to in section 3.15 of the Act.

8. Road widening and road realignment

The following outlines whether the land is affected by road widening or road realignment.

8.1 The Roads Act 1993 Part 3 Division 2

The subject land is not affected by road widening or road realignment under the Roads Act 1993 Part 3 Division 2.

8.2 An environmental planning instrument

The subject land is not affected by road widening or road realignment under an environmental planning instrument.

8.3 A resolution of the Council

The subject land is not affected by road widening or road realignment under any resolution of the Council.

9. Flood related development controls

The following outlines:

9.1 If the land or part of the land is within the flood planning area and subject to flood related development controls.

Yes/**No**

9.2 If the land or part of the land is between the flood planning area and the probable maximum flood and subject to flood related development controls.

Yes/**No**

9.3 The flooding precincts are shown on Maps online, within the layer titled "Flooding Precincts".

A link to this map can be found here: <https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Online-planning-tools/BLEP-2015-Maps-online>

They are based on results of engineering flood studies commissioned by Council or other government authorities. The information provided in this section is general advice based on results of engineering flood studies commissioned by Council or other government authorities. For more detailed flood information, please contact Council's Flooding Section and/or email Floodadvice@blacktown.nsw.gov.au

9.4 From 2 February - 8 March 2026, Council is exhibiting the Wianamatta South Creek flood study. If adopted, this study may change the flood planning area in some areas of Wianamatta South Creek.

Further information about this study, including draft mapping, is available through our have your say page: <https://haveyoursay.blacktown.nsw.gov.au/wianamatta-south-flood-study>

If you would like more information on how this may affect your property, you can contact Council's Flooding Section and/or email Floodadvice@blacktown.nsw.gov.au

10. Council and other public authority policies on hazard risk restrictions

The following outlines whether any of the land is affected by an adopted policy that restricts the development of the land because of the likelihood of:

10.1 Land slip

Council does not have an adopted policy that restricts the development of the land because of the likelihood of land slip.

10.2 Bush fire

Council does not have an adopted policy that restricts the development of the land because of the likelihood of bush fire.

The Rural Fire Services' 'Planning for Bush Fire Protection 2019' provides development standards for designing and building on bush fire prone land in New South Wales. The document is available on the Rural Fire Service's website at:

<https://www.rfs.nsw.gov.au/plan-and-prepare/building-in-a-bush-fire-area/planning-for-bush-fire-protection>

It is noted that the development control plan(s) referred to in Section 1 of this Planning Certificate may have provisions in relation to bush fire that are to be considered, where applicable.

10.3 Tidal inundation

Council does not have an adopted policy that restricts the development of the land because of the likelihood of tidal inundation.

10.4 Subsidence

Council does not have an adopted policy that restricts the development of the land because of the likelihood of subsidence.

10.5 Acid sulfate soils

Council does not have an adopted policy that restricts the development of the land because of the likelihood of acid sulfate soils.

10.6 Contamination

Council does not have an adopted policy that restricts the development of the land because of the likelihood of contamination.

Chapter 4, Remediation of land of the State Environmental Planning Policy (Resilience and Hazards) 2021 sets out provisions in relation to contamination. The document is available on the NSW Legislation website at: <https://legislation.nsw.gov.au/>.

Contaminated land planning guidelines are also available on the Environment Protection Authority's (EPA) website at <https://www.epa.nsw.gov.au/-/media/epa/corporate-site/resources/clm/managing-contaminated-land-guidelines-remediation.pdf>

It is noted that the development control plan(s) referred to in Section 1 of this Planning Certificate may have provisions in relation to contamination that are to be considered, where applicable.

10.7 Aircraft noise

Council does not have an adopted policy that restricts the development of the land because of the likelihood of aircraft noise.

10.8 Salinity

Council does not have an adopted policy that restricts the development of the land because of the likelihood of salinity.

It is noted that the development control plan(s) referred to in Section 1 of this Planning Certificate may have provisions in relation to salinity.

10.9 Coastal hazards

Council does not have an adopted policy that restricts the development of the land because of the likelihood of coastal hazards.

10.10 Sea level rise

Council does not have an adopted policy that restricts the development of the land because of the likelihood of sea level rise.

10.11 Other risks

Council has adopted an Asbestos Policy which may restrict development on the subject land. The Asbestos policy applies where land contains, or is likely to have contained in the past, buildings or structures that were erected prior to the banning of asbestos. The policy is available on Council's website: www.blacktown.nsw.gov.au

The Policy should be considered in the context of any other relevant NSW legislation and guidelines.

11. Bushfire prone land

The following outlines if any of the land is bush fire prone land, designated by the Commissioner of the NSW Rural Fire Service under section 10.3 of the *Environmental Planning and Assessment Act 1979*:

Council is currently in the process of updating its bush fire prone maps.

The updated maps reflect the NSW Rural Fire Services requirements and certified by the Commissioner of the NSW RFS under Environmental Planning and Assessment Act 1979, section 10.3(2). The maps are consistent with Planning for Bushfire Protection 2019. https://www.rfs.nsw.gov.au/data/assets/pdf_file/0005/174272/Planning-for-Bush-Fire-Protection-2019.pdf

While we update our maps, please refer to the following online maps published by NSW Rural Fire Services (RFS) to seek more information if your land is in a bush fire prone area.

<https://www.rfs.nsw.gov.au/plan-and-prepare/building-on-bush-fire-prone-land/bush-fire-prone-land/check-bfpl>

12. Loose-fill asbestos insulation

The following outlines if the land includes residential premises, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A, that are listed on the Register kept under that Division:

As at the date of this Planning Certificate, the land to which this certificate relates has not been identified in the Loose-Fill Asbestos Insulation Register as containing loose-fill asbestos ceiling insulation. Contact NSW Fair Trading on 13 32 20 or visit the website for more information at <https://www.fairtrading.nsw.gov.au/>

13. Mine subsidence

The land is not in an area proclaimed to be a mine subsidence district within the meaning of the *Coal Mine Subsidence Compensation Act 2017*.

14. Paper subdivision information

14.1 Development plan adopted

The following outlines whether a development plan has been adopted by a relevant authority that applies to the land:

The land is not subject to a development plan adopted by a relevant authority.

14.2 Development plan adopted – subject to ballot

The following outlines whether a development plan has been adopted by a relevant authority that is proposed to be subject to a ballot, and if so, the name of the plan:

The land is not subject to a development plan that has been adopted by a relevant authority that is proposed to be subject to a ballot.

14.3 Subdivision order

The following outlines if a subdivision order applies to the land, and if so, the date of the subdivision order:

The land is not subject to a subdivision order.

15. Property vegetation plans

There is no land in the local government area that is subject to an approved Property vegetation plan, which is in force under the Part 4 of the *Native Vegetation Act 2003*.

16. Biodiversity stewardship sites

The following outlines if the land is subject to a Biodiversity stewardship agreement under the *Biodiversity Conservation Act 2016*:

Council has not been notified that the land is subject to a biodiversity stewardship agreement under the *Biodiversity Conservation Act 2016*.

17. Biodiversity certified land

The following outlines if the land is biodiversity certified land under the Part 8 of the *Biodiversity Conservation Act 2016*.

Note: Biodiversity certified land includes land certified under Part 7AA of the *Threatened Species Conservation Act 1995*, that is taken to be certified under Part 8 of the *Biodiversity Conservation Act 2016*.

Council has not been notified that the land is biodiversity certified land under the *Biodiversity Conservation Act 2016*.

18. Orders under Trees (Disputes Between Neighbours) Act 2006

The following outlines whether Council has been notified of an order that has been made under the *Trees (Disputes Between Neighbours) Act 2006* to carry out work in relation to a tree on the land:

Council has not been notified of an order under the Act in respect of tree(s) on the land.
Council has not verified whether any order has been made of which it has not been notified.
The applicant should make its own enquiries in this regard if this is a matter of concern.

Trees (Disputes Between Neighbours) Act 2006 decisions by local government area can be found on the Land and Environment Court of New South Wales website at:

<https://www.lec.nsw.gov.au/lec/types-of-cases/class-2---tree-disputes-and-local-government-appeals/development-application-appeals/helpful-materials/merit-decisions-by-local-government-areas.html>

19. Annual charges under Local Government Act 1993 for coastal protection services that relate to existing coastal protection works

According to Council's records the owner (or previous owner) of the land **has not** consented in writing to the land being subject to annual charges for coastal protection services relating to existing coastal protection works (within the meaning of section 496B of the *Local Government Act 1993*).

20. Western Sydney Aerotropolis

The following outlines if, whether under Chapter 4 of the State Environmental Planning Policy (Precincts—Western Parkland City) 2021, the land is:

20.1 In a contour of 20 or greater, as shown on the Noise exposure contour map or Noise exposure forecast contour map

This does not apply to any land in the Blacktown local government area.

20.2 On the Lighting intensity and Wind shear map

This does not apply to any land in the Blacktown local government area.

20.3 On the Obstacle limitation surface map

The land may be shown on the Obstacle limitation surface map. This applies to some areas in the suburbs of Prospect (around Prospect Reservoir), Eastern Creek, Minchinbury, and small areas of Bungaribee and Mount Druitt. For more information refer to the Obstacle limitation surface map on the NSW Legislation website:

<https://www.planningportal.nsw.gov.au/publications/environmental-planning-instruments/state-environmental-planning-policy-precincts-western-parkland-city-2021>

20.4 On the Public safety area map:

This does not apply to any land in the Blacktown local government area.

20.5 In the '3 kilometre' or '13 kilometre' wildlife buffer zone on the Wildlife buffer zone map:

The 3 kilometre wildlife buffer zone does not apply to any land in the Blacktown local government area.

The land may be in the '13 kilometre wildlife buffer zone' on the Wildlife buffer zone map. This applies primarily to some industrial areas of Eastern Creek and some parts of Minchinbury and Mount Druitt.

An interactive map is available on the ePlanning Spatial Viewer under Layers > State Environmental Planning Policies > SEPP (Precincts – Western Parkland City) 2021 > SEPP (Western Sydney Aerotropolis) 2020 > Wildlife Buffer Zone
<https://www.planningportal.nsw.gov.au/spatialviewer/#/find-a-property/address>. (Turn off the 'zoning' layer under Layers > Principal Planning Layers > Land Zoning Map for ease of viewing).

21. Development consent conditions for seniors housing

The following outlines whether or not Chapter 3, Part 5 of the State Environmental Planning Policy (Housing) 2021 applies to the land, and if so, any conditions of a development consent granted after 11 October 2007 in relation to the land that are of the kind set out in section 88(2) of that policy:

- Council's records are currently incomplete in relation to this matter.
- Historically, if the site was to be used for the purposes of seniors housing, a restriction to that effect may have been placed on the land title under section 88B of the [Conveyancing Act 1919](#).

Please refer to the 88B Instrument for the site which can be accessed from NSW Land Registry Services to confirm if any such restrictions apply at: <https://www.nswlrs.com.au/>

- Alternatively, please review the relevant determinations that apply to the site. If required, a copy of the determinations can be obtained via an informal application under the *Government Information (Public Access) Act 2009*.

22. Site compatibility certificates and development consent conditions for affordable rental housing

22.1 Site compatibility certificate

The following outlines whether there is a current site compatibility certificate under State Environmental Planning Policy (Housing) 2021, or a former site compatibility certificate in relation to proposed development on the land, and if so, the period for which the certificate is current. Note that a copy may be obtained from the Department of Planning and Environment where this applies. For more information, visit the planning portal at: <https://pp.planningportal.nsw.gov.au/SCC>

A site compatibility certificate under *State Environmental Planning Policy (Housing) 2021*, or a former site compatibility certificate in relation to proposed development on the land, has not been issued.

22.2 SEPP Housing - conditions of consent

The following outlines if Chapter 2, Part 2, Division 1 or 5 of the State Environmental Planning Policy (Housing) 2021 applies to the land, and if so, any conditions of a development consent in relation to the land that are of a kind referred to in section 21(1) or 40(1) of that Policy:

- Council's records are currently incomplete in relation to this matter.
- Historically, if the site was to be used for the purposes of affordable rental housing, a restriction to that effect may have been placed on the land title under section 88B of the *Conveyancing Act 1919*. Please refer to the 88B Instrument for the site which can be accessed from NSW Land Registry Services to confirm if any such restrictions apply at: <https://www.nswlrs.com.au/>
- Alternatively, please review the relevant determinations that apply to the site. If required, a copy of the determinations can be obtained via an informal application under the *Government Information (Public Access) Act 2009*.

22.3 SEPP Affordable rental housing - conditions of consent

The following outlines if there are any conditions of a development consent in relation to land that are of a kind referred to in clause 17(1) or 38(1) of State Environmental Planning Policy (Affordable Rental Housing) 2009, and if so, the conditions:

- Council's records are currently incomplete in relation to this matter.

- Historically, if the site was to be used for the purposes of affordable rental housing, a restriction to that effect may have been placed on the land title under section 88B of the [Conveyancing Act 1919](#). Please refer to the 88B Instrument for the site which can be accessed from NSW Land Registry Services to confirm if any such restrictions apply at: <https://www.nswlrs.com.au/>
- Alternatively, please review the relevant determinations that apply to the site. If required, a copy of the determinations can be obtained via an informal application under the *Government Information (Public Access) Act 2009*.

23. Matters under the Contaminated Land Management Act 1997, section 59(2)

23.1 Significant contamination

The following outlines if the land, or part of the land, to which this certificate relates, is significantly contaminated land at the date when the certificate was issued:

Council has not been informed that the land is declared to be significantly contaminated land.

The NSW Environment Protection Authority's website records if the land is significantly contaminated land. For more information visit <https://www.epa.nsw.gov.au/>

23.2 Management order

The following outlines if the land to which this certificate relates is subject to a management order at the date when the certificate was issued:

Council has not been informed that the land is declared to be significantly contaminated land.

The NSW Environment Protection Authority (EPA) website records if the land is subject to a management order. For more information visit <https://www.epa.nsw.gov.au/>

23.3 Voluntary management proposal

The following outlines if the land is the subject of an approved voluntary management proposal at the date when the certificate was issued:

Council has not been informed that the land is declared to be significantly contaminated land.

The NSW Environment Protection Authority (EPA) website records if the land is subject to a voluntary management proposal. For more information visit <https://www.epa.nsw.gov.au/>

23.4 Maintenance order

The following outlines if the land to which the certificate relates is subject to an ongoing maintenance order:

Council has not been informed that the land is declared to be significantly contaminated land.

The NSW Environment Protection Authority (EPA) website records if the land is subject to an ongoing maintenance order. For more information visit <https://www.epa.nsw.gov.au/>

23.5 Site audit statement

The following outlines if the land to which the certificate relates is the subject of a site audit statement, and if a copy of such a statement has been provided at any time to Council:

If Council holds a copy of a Site Audit Statement (SAS) applying to the land, it will be located in Council's records. If required, a copy of a SAS can be obtained via an informal application under the *Government Information (Public Access) Act 2009*

24. Water or sewerage services

The following outlines if water or sewerage services are, or are to be, provided to the land under the *Water Industry Competition Act 2006*:

No water or sewerage services are, or are to be, provided to the land under the *Water Industry Competition Act 2006*.

Note—

A public water utility may not be the provider of some or all of the services to the land. If a water or sewerage service is provided to the land by a licensee under the *Water Industry Competition Act 2006*, a contract for the service will be deemed to have been entered into between the licensee and the owner of the land. A register relating to approvals and licences necessary for the provision of water or sewerage services under the *Water Industry Competition Act 2006* is maintained by the Independent Pricing and Regulatory Tribunal and provides information about the areas serviced, or to be serviced, under that Act. Purchasers should check the register to understand who will service the property. Outstanding charges for water or sewerage services provided under the *Water Industry Competition Act 2006* become the responsibility of the purchaser.

25. Special entertainment precincts

The following outlines whether the land or part of the land is in a special entertainment precinct within the meaning of the *Local Government Act 1993*, section 202B:

The land or part of the land is not in a special entertainment precinct within the meaning of the *Local Government Act 1993*, section 202B.

26. Interim development in future infrastructure corridors

The following outlines if a condition of a development consent has been granted in relation to the land that is a condition of concurrence granted by Transport for NSW under the provisions of *State Environmental Planning Policy (Transport and Infrastructure) 2021*, section 4.7A:

The land or part of the land is not subject to a condition of concurrence granted by Transport for NSW under the provisions of *State Environmental Planning Policy (Transport and Infrastructure) 2021*, section 4.7A.

End of certificate